

the present defendants' demurrer. Loosely speaking, the two pleadings in this case are largely mirror images of each other, as are the attacks made by the two competing demurrers. It thus appears that at least to a large extent, each side is being systematically inconsistent in its own filings, with arguments in demurrers that would apply equally well to the demurring parties' own complaint or cross-complaint.

The Court accordingly **continues** the upcoming hearing date of February 6 to May 16, 2026, so that if a demurrer to the first amended cross-complaint is filed (as seems likely), the two demurrers can be heard together. If such a demurrer (and/or motion to strike) is filed, it should be set for hearing on the same date.

In the meantime, the Court is of the view that both sides need to see to the consistency of their respective positions. It will not do for a party to plead a cause of action in his or her own complaint, while simultaneously making legal arguments in his or her demurrer that would be equally fatal to the party's own claims. The attorneys are therefore directed to meet and confer as to the legal viability of all of the various claims made in both directions, with a view to a stipulation either to drop nonviable claims, or to drop nonviable demurrers, or some of both. And if the attorneys cannot reach agreement, then each side must file and serve a statement by April 18, explaining how its own attacks on the other side's claims can be squared consistently with its own pleaded claims.

6. 9:00 AM CASE NUMBER: C24-03078
CASE NAME: THALBIR OLI VS. GOVIND SHAHI
***HEARING ON MOTION IN RE: STRIKE CROSS COMPLAINT**
FILED BY: OLI, THALBIR
TENTATIVE RULING:

See line 5.

7. 9:00 AM CASE NUMBER: C25-00444
CASE NAME: KYANI-DEVAREU HARRIS VS. COUNTY OF CONTRA COSTA COURT
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: COUNTY OF CONTRA COSTA
TENTATIVE RULING:

Department 309 (Judge Treat) recuses himself from this case in light of the point that the Court itself is a named defendant in the case. The demurrer is taken **off calendar**, and the case is referred to the Presiding Judge for consideration of a full-bench recusal.

8. 9:00 AM CASE NUMBER: C25-01064

CASE NAME: WILTON SHORT VS. FRANKLIN CREDIT MANAGEMENT CORP.

*HEARING ON MOTION IN RE: REQUEST FOR ORDER TO STRIKE ZBS LAW LLP'S DECLARATION OF NON-MONETARY STATUS AND FOR SANCTIONS

FILED BY: SHORT, WILTON C

TENTATIVE RULING:

Introduction

This is a wrongful foreclosure case. On April 16, 2025, Plaintiff Wilton Short filed a Complaint in this Court against Defendants Franklin Credit Management Corp, Bosco Credit LC, And ZBS Law. The original Complaint alleged five causes of action for (1) Wrongful Foreclosure; (2) Quiet Title; (3) Cancellation of Instruments; (4) Fraudulent Substitution of Trustee; and (5) Declaratory and Injunctive Relief.

Before the Court is Plaintiff Short's Motion to Strike Defendant ZBS Law's Declaration of Non-Monetary Status (DNMS).

For the following reasons, the **Plaintiff's Motion to Strike is denied.**

Meet and Confer Requirement

Plaintiff failed to satisfy his meet and confer requirements for his Motion to Strike. Plaintiff submitted a declaration in support of his motion to strike but never addressed any statutory mandated meet and confer efforts. (Short Decl. generally; See CCP § 435.5.)

Procedural Timeline

On May 27, 2025, Defendant ZBS Law filed and served its Declaration of Non-Monetary Status. Plaintiff filed his Motion to Strike Defendant ZBS Law DNMS on September 18, 2025, approximately 114 days after Defendant ZBS filed its DNMS.

Applicable Law

According to California law, when a foreclosure trustee files a DNMS and no party objects within 15 days, the trustee is not required to participate further in the action and is exempt from any monetary awards for damages, attorneys' fees, or costs. (Civ. Code §2924l(a-c).) In the event that parties fail to timely object or otherwise determines that the trustee should participate in the action because of the performance of its duties as a trustee, the parties may file and serve on all parties and the trustee a motion pursuant to Section 473 of the Code of Civil Procedure that specifies the factual basis for the demand. (Civ. Code §2924l(e).)

Analysis

Plaintiff's Motion is Untimely

Plaintiff's Motion must be denied because Plaintiff's Motion is untimely because it was not submitted within fifteen (15) days of notice of the DNMS.

In this matter, the Defendant ZBS Law filed and served its DNMS on May 27, 2025. Plaintiff did not file

his Motion to Stike until September 18, 2025, rendering it untimely.

Plaintiff's Motion is not Brought Pursuant to CCP § 473

Additionally, Plaintiff's Motion is improper because the plain language of the code provides for a specific mechanism to challenge a DNMS which Plaintiff has failed to comply with, rendering his Motion fatally defective. The statute requires the parties that seek to challenge a DNMS through the framework of a motion pursuant to Section 473 of the Code of Civil Procedure. Plaintiff did not do so here, rendering his motion improper and fatally defective

Conclusion

In consideration of the above, **Plaintiff's Motion to Strike is denied.**

9. 9:00 AM CASE NUMBER: C25-01567
CASE NAME: ALEXIS DEAN VS. MONTE GARDENS ELEMENTARY SCHOOL (MOUNT DIABLO UNIFIED SCHOOL DISTRICT)
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: MOUNT DIABLO UNIFIED SCHOOL DISTRICT
TENTATIVE RULING:

Department 309 (Judge Treat) recuses himself from this case. The demurrer is **continued** to January 23, 2026, so that it can be heard in the regularly assigned Department 32 (Judge Hiramoto).

10. 9:00 AM CASE NUMBER: C25-01730
CASE NAME: RINNOVO GROUP INC VS. ARMOR CONTRACTING COMPANY
***HEARING ON MOTION IN RE: LEAVE OF COURT TO INTERVENE ON BEHALF OF ITS INSURED ARMOR CONTRACTING COMPANY**
FILED BY: SCOTTSDALE INSURANCE COMPANY
TENTATIVE RULING:

This was handled by stipulation.

11. 9:00 AM CASE NUMBER: C25-01931
CASE NAME: NOEL LINARES VS. THI TRANG NGUYEN
***HEARING ON MOTION IN RE: TRIAL PREFERENCE**
FILED BY: LINARES, NOEL
TENTATIVE RULING:

Plaintiff moves for trial preference. The motion is expressly unopposed. The motion is therefore **granted**, and the parties are to appear (Zoom okay) to discuss a trial date.